NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
NEW DELHI

C.P.No. (CAA)- 34/ND/2020

1. M/s EEE Realty Private Limited
   Having Registered Office at:
   Shiv Sushil Bhawan D-219
   Vivek Vihar-I, New- Delhi-110095

Applicant No.1/Transferor Company

AND

2. M/s Mayur BuildconPrivate Limited
   Having Registered Office at:
   Shiv Sushil Bhawan D-219
   Vivek Vihar-I, New- Delhi-110095

Applicant No.2/Transferor Company

WITH

3. M/s GGG Reality Private Limited
   Having Registered Office at:
   Shiv Sushil Bhawan D-219
   Vivek Vihar-I, New- Delhi-110095

Applicant No.3/ Transferee Company

CORAM: MS.DEEPTI MUKESH, HON'BLE MEMBER(J)
MR.HEMNAT KUMAR SARANGI, HON'BLE MEMBER (T)

SECTION OF THE COMPANIES ACT: 230-232

Order Delivered On: 14.02.2020

ORDER

As Per Ms. Deepti Mukesh (Member Judicial)

This petition by way of Second Motion is admitted and fixed for hearing and final disposal on 30th March, 2020.

2. Learned Counsel for the Petitioner Companies submits that in terms of Order dated 3rd February, 2020 passed by this Tribunal in Company Application No. CA(CAA)-17 (ND)2020, the meeting of all Equity Shareholders and unsecured creditors of the applicant companies for the proposed Scheme of Amalgamation between theTransferor Companies (Applicants No. 1 to 2) with the Transferee Company (Applicant No.3) had been dispensed with in view of their consent affidavits being on record. There were no secured creditors in any of the applicant companies.

3. It is therefore now directed that the notice of final hearing is fixed for 30th March, 2020 and shall be advertised in the daily newspapers namely, the "Indian Express" in English and "Jansatta" in Hindi having circulation in Delhi, not less than 10 days before the aforesaid date fixed for hearing.

4. In addition to the above public notice, the applicant companies shall individually serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs (b)Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs (c) the Income Tax Department (d) Official Liquidator and to such other Sectoral Regulatory Authorities who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

5. Both the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

6. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

Sd/- sd/-

Hemant Kumar Sarangi
Member(T)

Deepti Mukesh
Member(J)